

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

5. ERIK FARAHMAND V. ABIGAIL CAGE

PFL20130874

This matter is set for a review hearing on the issues of custody and visitation. Respondent's Supplemental Declaration was filed on April 1, 2026. It was served on March 27th.

Petitioner has not filed a Supplemental Declaration.

Respondent asks the court to maintain the current custody and parenting plan orders including, without limitation, the orders regarding the children's individual therapy and Claire's conjoint therapy. She asks that no further review hearings be set.

After reviewing the Supplemental Declaration of Respondent, the court finds that all current orders remain in the best interests of the children. As such, all current orders remain in full force and effect. This includes, but is not limited to, the orders regarding individual therapy for the children and conjoint therapy for Claire. No further review hearings are being set at this time.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE COURT FINDS THAT ALL CURRENT ORDERS REMAIN IN THE BEST INTERESTS OF THE CHILDREN. AS SUCH, ALL CURRENT ORDERS REMAIN IN FULL FORCE AND EFFECT. THIS INCLUDES, BUT IS NOT LIMITED TO, THE ORDERS REGARDING INDIVIDUAL THERAPY FOR THE CHILDREN AND CONJOINT THERAPY FOR CLAIRE. NO FURTHER REVIEW HEARINGS ARE BEING SET AT THIS TIME.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 9, 2026

8:30 a.m./1:30 p.m.

**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

6. HOPE KINSMAN V. JEREMY KINSMAN

25FL0256

On March 9, 2026, Respondent filed and served an Amended Request for Order (RFO) seeking a variety of orders.

Petitioner filed and served her Responsive Declaration to Request for Order on March 26th.

Respondent filed and served a Declaration on March 27th. Petitioner filed an Objection and Request to Strike on April 1st.

Petitioner objects to Section 12 and the last three paragraphs of Respondent's Declaration as these portions of the declaration improperly include statements made during settlement negotiations. The objection is sustained. The court strikes Section 12 and the last three paragraphs of Respondent's March 27th Declaration.

Respondent asks the court to review the parties' assets and make orders regarding the characterization of those assets. He further asks that the parties be ordered to correct and supplement any inaccurate or incomplete financial disclosures.

Petitioner opposes the requests in their entirety and notes that Respondent's default has been taken. Issues regarding property division are to be the subject of a prove-up hearing, not an RFO. Additionally, Petitioner notes that the original RFO requested a protective order for discovery, but the "amended" RFO makes entirely different requests and it is unclear what exactly is being requested of the court. Finally, Petitioner requests \$1,500 in sanctions pursuant to Family Code § 271 or Civil Procedure § 128.5.

Given that Respondent does not include his request for a protective order in his amended RFO, it appears the request has been dropped and therefore, the court declines to rule on it.

The parties are ordered to appear to select dates for a prove-up hearing.

The court reserves jurisdiction on Petitioner's request for sanctions until the time of the hearing.

TENTATIVE RULING #6: PETITIONER'S OBJECTION IS SUSTAINED. THE COURT STRIKES SECTION 12 AND THE LAST THREE PARAGRAPHS OF RESPONDENT'S MARCH 27TH DECLARATION. GIVEN THAT RESPONDENT DOES NOT INCLUDE HIS REQUEST FOR A PROTECTIVE ORDER IN HIS AMENDED RFO, IT APPEARS THE REQUEST HAS BEEN DROPPED AND THEREFORE THE COURT DECLINES TO RULE ON IT.